

TENTATIVE RULING

Case: **Magallon v. Solorzano**
 Case No. CV2023-2182

Hearing Date: **April 1, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiffs Reyna Magallon and Esequiel Pena’s unopposed motion to strike defendant Francisco Solorzano’s answer or, in the alternative, issue sanctions against defendant and his counsel of record is **GRANTED IN PART**. (Code Civ. Proc., §§ 2023.010, 2023.030, 2030.300, 2033.290.) As an initial matter, the Court does not consider whether to impose terminating sanctions because plaintiffs’ notice of motion fails to specify that plaintiffs seek terminating sanctions. (Code Civ. Proc., § 2023.040 [“A request for a sanction shall, in the notice of motion...specify the type of sanction sought”].)

The Court finds that defendant Francisco Solorzano and his counsel (Harry Roth) misused the discovery process by failing to pay the sanction as ordered by the Court on September 16, 2025. (Code Civ. Proc., § 2023.010, subd. (g); Seuthe decl., ¶ 6, Exhibit C.) As this Court takes an incremental approach to sanctions and plaintiffs provided evidence that defendant and/or his counsel violated only one court order, this Court imposes monetary sanctions but declines to impose issue or evidentiary sanctions. (Code Civ. Proc., § 2023.030, subds. (a)-(c); *Lopez v. Watchtower Bible & Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 604; Seuthe decl., ¶¶ 2-8, Exhibit A-C.) The Court orders monetary sanctions, in the amount of **\$1,560.00**, against defendant and defendant’s counsel. (Code Civ. Proc., §§ 2023.010, subd. (g), 2023.030, subd. (a); Seuthe decl., ¶ 9.) The Court declines to award sanctions for time not yet incurred. Defendant and defendant’s counsel must pay the sanction by **May 1, 2026**.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Vorhees v. Keables et al.**
Case No. CV2026-0216

Hearing Date: **April 1, 2026** **Department Eleven** **9:00 a.m.**

Demurrer:

Respondent Woodland Community Colleges' request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Respondent's demurrer is **SUSTAINED WITH LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e); *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146 - 1147.) The Court finds that petitioner James Patrick Vorhees' writ of mandate or prohibition ("writ") fails to identify: (1) a relevant legal basis for relief pursuant to Code of Civil Procedure section 1085; or (2) a judicial function as required for relief pursuant to Code of Civil Procedure section 1102; thus, the writ fails to state facts sufficient to constitute any cause of action against respondent. (Code Civ. Proc., §§ 1085, 1102; see *Pearson v. Reed* (1935) 6 Cal.App.2d 277, 287; Writ, ¶ 4.) The Court also notes that the writ is not verified, as required by Code of Civil Procedure section 1103.

The notice of demurrer does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Writ of mandate or prohibition:

Given the Court's ruling on respondent Woodland Community College's demurrer, petitioner James Patrick Vorhees' writ of mandate or prohibition is **DENIED AS MOOT**.

The writ of mandate or prohibition does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.